

Calendar Line 3

Case Name: 26PR202034

Case No.: *Estate of Rita Pauline Catalano*

The above-entitled action came on for hearing before the Honorable Lori E. Pegg on June 12, 2026 at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

Petitioner Regina Drysdale (“Petitioner”) initiated this case by filing a petition for probate seeking to administer the estate of her mother, Rita Catalano (“Decedent”), pursuant to a 2017 will. Objectors Lisa Boyer and Daniel Catalano (“Objectors”), acting co-trustees¹ of Decedent’s trust, the Rita P. Catalano Trust of 2000, object to the petition, asserting, inter alia, that Decedent executed a codicil, which Petitioner has not provided to the court and which nominated Daniel Catalano, rather than Petitioner, as executor.²

Currently before the court is Petitioner’s motion to amend her petition for probate. Objectors have opposed the motion and Petitioner has filed a reply.

DISCUSSION

I. Legal Background

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court “may, in the furtherance of justice,” allow a party to amend any pleading. “It is well established that ‘California courts have “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” [Citation.] Indeed, “it is a rare case in which ‘a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.’ ”[Citation.]’ [Citation.] Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings

¹ Petitioner disputes that Objectors are the legitimate co-trustees.

² The parties are also involved in trust-related litigation in dockets 22PR191805 and 22PR193527.